

United States Department of Agriculture
Agricultural Marketing Service
Commodity Procurement Program
1400 Independence Avenue, SW, S-0239
Washington, DC 20250-0239

Information

Description: **12-3J14-26-B-0129**
Bid invitation number: **2000011158**
Purchasing Group: **AMS-Fruit and Veg**

SOLICITATION

Domestic Commodity Invitation

Bid invitation Overview

Bid Timezone: Central Time
Start Date: 01/21/2026 10:40:00
Offer Due Date : 02/04/2026 13:00:00

Opening date: 02/04/2026 13:00:00

Invitation Type : Definite Delivery

Additional requested information:

Tendering text - Header :

Fresh Fruit, SOLICITATION NO: 2000011158

The U.S. Department of Agriculture (USDA) invites offers to sell fresh apples and pears pursuant to the AMS Master Solicitation for use in the National School Lunch Program and other Federal Food and Nutrition Assistance Programs. Acceptances will be announced by 11:59 PM, February 18, 2026. Deliveries are to be made between March 30, 2026, and June 24, 2026.

The Contract Specialist handling this purchase will be Nick Wiber at nick.wiber@usda.gov. The Contact Officer handling this purchase will be Samantha Klagenberg (Samantha.Klagenberg@usda.gov) Please contact the specialist first.

Note: This is a combined pre-solicitation notice and solicitation in accordance with RFO Part 5.101(d).

Crop year 2025 and 2026 only.

Small Business Set Asides for NAICS code 311991 with a size standard of 700 employees or less are as follows:

APPLES GRANNY SMITH FRESH CTN-40 LB - 100% Small Business Set-aside
APPLES RED DELICIOUS FRESH CTN-40 LB - 100% Small Business Set-aside
APPLES FUJI FRESH F CARTON-40 LB - 100% Small Business Set-aside- 10% SDVO Set aside
APPLES GALA FRESH G CARTON-40 LB - 100% Small Business Set-aside
APPLES FRESH PKG-12/3 LB - 100% Small Business Set-aside - 10% SDVO Set aside
PEARS FRESH PKG-12/3 LB - 100% Small Business Set-aside

This purchase must meet all relevant requirements such as packing, packaging, labeling, inspection and shipping temperatures of the Commodity Specification for Fresh Fruit July 2019 with the following exceptions:

PEARS FRESH PKG-12/3 LB

The Fresh Pears will be inspected and Positive Lot Identified by the Federal or Federal-State Inspection Service at shipping point (origin) in accordance with the Agricultural Marketing Act of 1946 (see the Master Solicitation) and, must be delivered to the final recipient destination within five calendar days of inspection and certification. The contractor must contact and allow the USDA Inspector at least 72 hours advance notice when scheduling inspection service.

Inspections under the Partners in Quality (PIQ) and Customer Assisted Inspection Program (CAIP) programs are not accepted for Commodity Procurement purchases.

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If USDA inspection/certification at shipping point meets all requirements of this specification and solicitation, it does not guarantee acceptance at destination. Product at destination must still meet all applicable specification and solicitation requirements with no additional tolerances allowed. Failure to meet these requirements may result in rejection of the load at destination. It is the vendor's responsibility to ensure the delivery of acceptable product and the replacement of any failed deliveries with acceptable product.

< End of exceptions to Commodity Specification for Fresh Fruit July 2019 for PEARS FRESH PKG-12/3 LB>

Every bidder must include a letter of support with their bid from all current and approved supplier(s). The templates for the letter of support are attached to the solicitation with the required elements. Each letter of support is only good for one solicitation. A new letter of support will be required for every solicitation, from every supplier. The supplier must include the quantity in cases they are committing to the bidder. USDA will not award a quantity that exceeds the sum of all supplier's committed quantities to a particular bidder.

For a new-to-USDA contractor and existing contractors who are bidding on new products, a probationary period may be implemented in which awards are limited to 10 truckloads per product. Contractor must demonstrate successful delivery of at least five (5) truckloads of product in order to be removed from probationary status on future solicitations. For the purposes of this rule, successful delivery is defined as product delivered on-time and in acceptable condition according to the terms and conditions of the contract. Any delivery problems directly attributable to the Government will not be held against the contractor.

Vendors or subcontractors who are supplying fresh fruit crops to the United States Department of Agriculture (USDA) must ensure that each of their suppliers/subcontractors who grow, harvest, pack, hold, and handle product have approved and current food safety verification audits PRIOR to the bid opening date of this solicitation. Good Agricultural Practices (GAP) and Good Handling Practices (GHP) scopes which are necessary to meet the minimum requirement to be deemed responsive are as follows:

GAP - Farm Review AND Field Harvesting & Field Packing Activities
 GHP - House Packing Facility AND Storage & Transportation

All these requirements shall be met PRIOR to the bid opening date.

Brokers are exempt from the USDA GAP/GHP requirements themselves, however suppliers/subcontractors performing under the contract shall have the applicable USDA GAP/GHP certification(s).

Verification audits shall be performed by the USDA, AMS, SCP-SCID representatives only. In order to be found responsive the contractor and/or its subcontractors/suppliers must be in compliance with USDA GAP/GHP certification. Offerors must include in their bid the GAP and GHP Audit Verification attachment, which is found in the attachments section of this solicitation. Offerors who do

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not complete this form in its entirety, do not include the form as an attachment to their bid, or are missing the required USDA GAP/GHP scopes listed above shall be deemed nonresponsive.

All audits are valid for one year after the date the audit was conducted. More information on USDA GAP/GHP audits can be found here: <https://www.ams.usda.gov/services/auditing/gap-ghp> or by reaching out to scaudits@usda.gov.

Awardees may ship and supply from any location found here:
<https://apps.ams.usda.gov/GAPGHP/reportG01.aspx>

If USDA/AMS finds that suppliers used by the contractor are not in compliance with AMS GAP/GHP certification requirements after the product is delivered, the following courses of action will apply:

1. A cure notice shall be issued informing the contractor of their failure to comply with the required elements of this solicitation. The USDA will then deduct a 50% discount from the invoice for all noncompliant deliveries shipped or invoiced prior to the date listed on the cure notice.
2. If the contractor ships noncompliant product after the date of the cure notice:
 - a. USDA/AMS will deduct a 50% discount from the invoice for all noncompliant deliveries;
 - b. The contract will be terminated for cause; and
 - c. The contractor will be suspended from participating in all future USDA/AMS fresh fruit and vegetable solicitations for a period of one year from the date of contract termination.

This solicitation may show multiple stops on some line items; however, the number of stops will be limited to a maximum of three. To determine the number of destinations, review the "Tendering Text" for the lot, which will indicate the City and State for each stop. Bidders may submit different prices for each stop. However, a price is required on all line items within the lot.

For offshore destinations (Puerto Rico, Hawaii, etc.), offerors have the option to choose to enter their bids direct to the offshore destination or to the port. Purchases will be made on an f.o.b. destination basis to cities on this solicitation. Destination quantities listed are estimates and subject to adjustment based on offerings, changes in recipient needs, market conditions, and program operations.

All prime vendors are reminded that they are prohibited from subcontracting with companies or individuals that have been suspended or debarred.

Offers must be submitted electronically via the Web-Based Supply Chain Management System (WBSCM). Offers submitted by any means other than WBSCM will be deemed nonresponsive. Offerors must be active in WBSCM and have the required bidder roles in order to submit offers under this solicitation. Once connected, follow the online procedures. A "HELP" button provides detailed instructions or call (202) 720-4517 for assistance.

Offerors are cautioned to bid only quantities they can reasonably expect to produce and deliver.

#System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency

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solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3,

Offeror Representations and Certifications-Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they SAM.#

Inquiries about the Master Solicitation dated November 19, 2025; The Commodity Specification for Fresh

Fruit July 2019; or this solicitation should be directed to the Contracting Officer; USDA, AMS, Room 3522-South; 1400 Independence Avenue, S.W.; Room 2968-S, STOP 0239 Washington, D.C. 20250-0239. Telephone: (202) 720-4517. FAX: (202) 720-2782.

In accordance with Federal civil rights law and U.S. Department of Agriculture (USDA) civil rights regulations and policies, the USDA, its Agencies, offices, and employees, and institutions participating in or administering USDA programs are prohibited from discriminating based on race, color, national origin, religion, sex, disability, age, marital status, family/parental status, income derived from a public assistance program, political beliefs, or reprisal or retaliation for prior civil rights activity, in any program or activity conducted or funded by USDA (not all bases apply to all programs). Remedies and complaint filing deadlines vary by program or incident. Persons with disabilities who require alternative means of communication for program information (e.g., Braille, large print, audiotape, American Sign Language, etc.) should contact the responsible Agency or USDA's TARGET Center at (202) 720-2600 (voice and TTY) or contact USDA through the Federal Relay Service at (800) 877-8339. Additionally, program information may be made available in languages other than English. To file a program discrimination complaint, complete the USDA Program Discrimination Complaint Form, AD-3027, found online at How to File a Program Discrimination Complaint and at any USDA office or write a letter addressed to USDA and provide in the letter all of the information requested in the form. To request a copy of the complaint form, call (866) 632-9992. Submit your completed form or letter to USDA by: (1) mail: U.S. Department of Agriculture, Office of the Assistant Secretary for Civil Rights, 1400 Independence Avenue, SW, Room 2968-S, STOP 0239 Washington, D.C. 20250-9410; (2) fax: (202) 690-7442; or (3) email: program.intake@usda.gov." USDA is an equal opportunity provider, employer, and lender.

See attached documents:

- 1 . CommoditySpecificationforFreshFruitJuly2019
- 2 . USDA GAP and GHP Audit Verification Document
- 3 . Templates for Supplier Agreement Letter
- 4 . MSCP-D_11-19-25

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Attributes :

OFFEROR CERTIFIES THAT THE OFFER IS MADE SUBJECT TO THE MASTER SOLICITATION; COMMODITY SUPPLEMENT AND/OR SPECIFICATION(S); THIS SOLICITATION; THE AGRICULTURE ACQUISITION REGULATIONS (AGAR) AND THE FEDERAL ACQUISITION REGULATIONS (FAR).

Timely performance: Offeror and any subcontractor have completed required performance of any USDA contract prior to this bid opening.

- Permitted values:
- Have been delivered
 - Have not been delivered
 - Have not been delivered, but the Offeror has notified the Contracting Officer
 - There are no existing contracts/purchase orders

OFFEROR REQUESTS HUBZONE SMALL BUSINESS PRICE EVALUATION PREFERENCE. APPLIES ONLY TO FIRMS CERTIFIED IN THE SMALL BUSINESS ADMINISTRATION'S HUBZONE PROGRAM (FAR SUBPART 19.13). MUST BE THE MANUFACTURER/PRODUCER OF THE PRODUCT TO RECEIVE A PRICE PREFERENCE

Furnish name, title, phone number, fax number, and e-mail address of person submitting this bid (must be an officer of the company or a person authorized to execute contracts/purchase orders on behalf of the bidder).

IS THE OFFEROR AN ENTITY THAT HAS FILED ARTICLES OF INCORPORATION IN ONE OF THE FIFTY STATES, THE DISTRICT OF COLUMBIA, OR THE VARIOUS TERRITORIES OF THE UNITED STATES? YOU MUST ANSWER THE NEXT 3 QUESTIONS IF THE ANSWER FOR THIS QUESTION IS YES.

HAS THE OFFEROR BEEN CONVICTED OF A FELONY CRIMINAL VIOLATION UNDER FEDERAL OR STATE LAW IN THE 24 MONTHS PRECEDING THE DATE OF OFFER?

HAS THE OFFEROR HAD ANY OFFICER OR AGENT OF OFFEROR CONVICTED OF A FELONY CRIMINAL VIOLATION FOR ACTIONS TAKEN ON BEHALF OF OFFEROR UNDER FEDERAL OR STATE LAW IN THE 24 MONTHS PRECEDING THE DATE OF OFFER?

DOES THE OFFEROR HAVE ANY UNPAID FEDERAL TAX LIABILITY ASSESSED, WHICH ALL JUDICIAL AND ADMINISTRATIVE REMEDIES HAVE BEEN EXHAUSTED/LAPSED, THAT IS NOT BEING PAID IN A TIMELY MANNER PURSUANT TO AGREEMENT WITH THE AUTHORITY RESPONSIBLE FOR COLLECTING IT?

Offeror attached the required Supplier Agreement Letter for every supplier they intend to subcontract

Bid invitation Item details

	Item Material	Description	Required by	ZipCode	Quantity	
10	FRUIT, FRESH					
	20	APPLES FRESH PKG-12/3 LB				
		30	EAST POINT GA			
	40	110561	APPLES FRESH PKG-12/3 LB	06/08/2026-06/10/2026	30344	CS
					980.000	

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Item	Material	Description	Required by	ZipCode	Quantity	
50 MCCARRAN NV						
60	110561	APPLES FRESH PKG-12/3 LB	06/15/2026-06/17/2026	89434		CS
					980.000	
70 PHARR TX						
80	110561	APPLES FRESH PKG-12/3 LB	05/04/2026-05/06/2026	78577		CS
					980.000	
90 PLANO TX						
100	110561	APPLES FRESH PKG-12/3 LB	03/30/2026-04/01/2026	75075		CS
					980.000	
110	110561	APPLES FRESH PKG-12/3 LB	04/06/2026-04/08/2026	75075		CS
					980.000	
120	110561	APPLES FRESH PKG-12/3 LB	04/13/2026-04/15/2026	75075		CS
					980.000	
130	110561	APPLES FRESH PKG-12/3 LB	04/20/2026-04/22/2026	75075		CS
					980.000	
140	110561	APPLES FRESH PKG-12/3 LB	04/27/2026-04/29/2026	75075		CS
					980.000	
150 LOT: 120062638 DENVER CO / GRAND JUNC...						
Tendering text - Item : LOT: 120062638 DENVER CO / GRAND JUNCTION CO /						
160	110561	APPLES FRESH PKG-12/3 LB	06/15/2026-06/17/2026	80249		CS
					735.000	
170	110561	APPLES FRESH PKG-12/3 LB	06/15/2026-06/17/2026	81505		CS
					245.000	
Total Quantity for APPLES FRESH PKG-12/3 LB						CS
					8,820.000	
180 APPLES FUJI FRESH F CARTON-40 LB						
190 TUCSON AZ						
200	100522	APPLES FUJI FRESH F CARTON-40 LB	03/30/2026-04/01/2026	85713		CS
					924.000	
210	100522	APPLES FUJI FRESH F CARTON-40 LB	05/04/2026-05/06/2026	85713		CS
					924.000	
220 ORLANDO FL						
230	100522	APPLES FUJI FRESH F CARTON-40 LB	05/04/2026-05/06/2026	32805		CS
					924.000	
240	100522	APPLES FUJI FRESH F CARTON-40 LB	06/01/2026-06/03/2026	32805		CS
					924.000	
250	100522	APPLES FUJI FRESH F CARTON-40 LB	06/15/2026-06/17/2026	32805		CS
					924.000	

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Item	Material	Description	Required by	ZipCode	Quantity	
260 LAS VEGAS NV						
270	100522	APPLES FUJI FRESH F CARTON-40 LB	05/04/2026-05/06/2026	89030	924.000	CS
280 CLEVELAND OH						
290	100522	APPLES FUJI FRESH F CARTON-40 LB	05/04/2026-05/06/2026	44110	924.000	CS
300	100522	APPLES FUJI FRESH F CARTON-40 LB	06/01/2026-06/03/2026	44110	924.000	CS
310 HOUSTON TX						
320	100522	APPLES FUJI FRESH F CARTON-40 LB	04/13/2026-04/15/2026	77029	924.000	CS
330	100522	APPLES FUJI FRESH F CARTON-40 LB	05/11/2026-05/13/2026	77029	924.000	CS
340	100522	APPLES FUJI FRESH F CARTON-40 LB	06/08/2026-06/10/2026	77029	924.000	CS
550 VINELAND NJ						
560	100522	APPLES FUJI FRESH F CARTON-40 LB	04/27/2026-04/29/2026	08360	924.000	CS
Total Quantity for APPLES FUJI FRESH F CARTON-40 LB					11,088.000	CS
350 APPLES GALA FRESH G CARTON-40 LB						
360 EXETER CA						
370	100521	APPLES GALA FRESH G CARTON-40 LB	05/18/2026-05/20/2026	93221	924.000	CS
380 EAST POINT GA						
390	100521	APPLES GALA FRESH G CARTON-40 LB	05/04/2026-05/06/2026	30344	924.000	CS
570 NEWARK NJ						
580	100521	APPLES GALA FRESH G CARTON-40 LB	04/27/2026-04/29/2026	07114	924.000	CS
Total Quantity for APPLES GALA FRESH G CARTON-40 LB					2,772.000	CS
400 APPLES GRANNY SMITH FRESH CTN-40 LB						
410 DAVENPORT IA						
420	110543	APPLES GRANNY SMITH FRESH CTN-40 LB	04/13/2026-04/15/2026	52802	924.000	CS
Total Quantity for APPLES GRANNY SMITH FRESH CTN-40 LB					924.000	CS

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Item	Material	Description	Required by	ZipCode	Quantity	
430 APPLES RED DELICIOUS FRESH CTN-40 LB						
440 SAN BERNARDINO CA						
450	100514	APPLES RED DELICIOUS FRESH CTN-40 LB	06/01/2026-06/03/2026	92415		CS
					924.000	
460 BATON ROUGE LA						
470	100514	APPLES RED DELICIOUS FRESH CTN-40 LB	06/15/2026-06/17/2026	70815		CS
					924.000	
480	100514	APPLES RED DELICIOUS FRESH CTN-40 LB	06/22/2026-06/24/2026	70815		CS
					924.000	
Total Quantity for APPLES RED DELICIOUS FRESH CTN-40 LB						CS
					2,772.000	
490 PEARS FRESH PKG-12/3 LB						
500 CHICAGO IL						
510	110560	PEARS FRESH PKG-12/3 LB	04/06/2026-04/08/2026	60632		CS
					980.000	
520	110560	PEARS FRESH PKG-12/3 LB	04/27/2026-04/29/2026	60632		CS
					980.000	
530	110560	PEARS FRESH PKG-12/3 LB	05/18/2026-05/20/2026	60632		CS
					980.000	
540	110560	PEARS FRESH PKG-12/3 LB	06/15/2026-06/17/2026	60632		CS
					980.000	
Total Quantity for PEARS FRESH PKG-12/3 LB						CS
					3,920.000	
Total Quantity for Invitation						CS
					30,296.000	

Samantha Klagenberg

Samantha Klagenberg
 Contracting Officer
 United States of America